



Province of Alberta

CHILD, YOUTH AND FAMILY ENHANCEMENT ACT

CHILD, YOUTH AND FAMILY ENHANCEMENT REGULATION

Alberta Regulation 160/2004

With amendments up to and including Alberta Regulation 194/2025

Current as of September 1, 2025

Office Consolidation

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(Consolidated up to 194/2025)

ALBERTA REGULATION 160/2004

Child, Youth and Family Enhancement Act

CHILD, YOUTH AND FAMILY ENHANCEMENT REGULATION

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Definitions

- 1(1)** In this Regulation, “supports for permanency recipient” means a person to whom financial assistance may be provided under section 105.795 of the Act.
- (2)** For the purposes of Part 1, Division 5 and Part 2 of the Act, “qualified person” means

- (a) an individual who is registered on the general register category of the regulated members register of the Alberta College of Social Workers, or
- (b) a person who in the opinion of the Minister is qualified because of the person's education and experience.

(3) For the purposes of the Act, "alternative dispute resolution" means mediation.

AR 160/2004 s1;194/2025

Forms

2(1) The forms prescribed for the purposes of the Act related to this Regulation are the forms in Schedule 1.

(2) Repealed AR 167/2020 s2.

AR 160/2004 s2;277/2009;31/2019;167/2020

Secure services facilities

3 The facilities listed in Schedule 2 are secure services facilities for the purposes of the Act.

Director's qualifications

4 For the purposes of this Act, the qualifications required for a person to be appointed as a director are that the person

- (a) holds a master degree in social work and has 10 years' direct experience in the delivery of intervention services, or
- (b) has a combination of education and experience considered by the Minister to be equivalent to that described in clause (a).

Part 1 General Provisions

Mediation

5(1) A person who conducts alternative dispute resolution by mediation under section 3.1 of the Act must

- (a) have qualifications or experience, or a combination of both, satisfactory to a director, and
- (b) be agreed to by all parties to the mediation.

(2) A person who conducts alternative dispute resolution by mediation must use a process that facilitates the parties to the mediation to make their own decisions to resolve the dispute.

Post-18 support, financial assistance

6(1) A director may enter into an agreement with a person described in section 57.3 of the Act with respect to the provision of support and financial assistance required to assist or enable the person to establish or maintain an independent living arrangement if, in the opinion of the director, the support and financial assistance are not reasonably available to the person from other sources.

(2) An agreement referred to in subsection (1) must include a plan for the person's transition to independence and adulthood.

(3) An agreement referred to in subsection (1) may provide support and financial assistance that are required for the health, well-being and transition to independence and adulthood of the person referred to in section 57.3 of the Act, including

- (a) living accommodation,
- (b) financial assistance related to necessities of life,
- (c) if the person is less than 20 years of age, financial assistance related to training and education,
- (d) if the person is less than 20 years of age, health benefits, and
- (e) any other services that may be required to enable the person to live independently or achieve independence.

(4) No agreement referred to in subsection (1) may be entered into or remains in force after the person's 22nd birthday.

AR 160/2004 s6;147/2014;31/2019;8/2020;167/2020

Duty to keep records

7 For the purposes of section 127 of the Act, a director must keep records with respect to a child who is the subject of an investigation, agreement or order under the Act or any predecessor to the Act.

Annual permanent placement plans report

8(1) A report referred to in section 34.1 of the Act must be made annually for the calendar year immediately preceding the

preparation of the report, and must be provided to the Minister at the time required by the Minister.

(2) The report must not contain identifying information respecting any child but must indicate

- (a) the total number of children who were the subject of permanent guardianship agreements or orders at any time during the year for which the report is made,
- (b) the average length of time that the children referred to in clause (a) were the subjects of permanent guardianship agreements or orders, and
- (c) the categories of permanent placement considered by the director for the children referred to in clause (a) and the number of children placed in each category during the year for which the report is made.

AR 160/2004 s8;277/2009

9 Repealed AR 277/2009 s4.

Supports for permanency

10(1) Repealed AR 194/2025 s3.

(2) The financial assistance that may be provided pursuant to section 105.795 of the Act is the following:

- (a) the basic maintenance rate available for a child in foster care;
- (b) the cost of parental respite services to a maximum of 576 hours annually, as determined by a director, for all children in respect of whom the supports for permanency recipient is receiving financial assistance under section 105.795 of the Act combined, at an hourly rate determined by the director;
- (c) in the case of a child who is a First Nation Individual, the cost of travel, as determined by a director, of the child, the supports for permanency recipient and the recipient's other family members
 - (i) to and from the child's band, community or extended family for the purpose of respecting, supporting and preserving the child's Indigenous identity, culture, heritage, spirituality, language and traditions, and

- (ii) for other purposes related to respecting, supporting and preserving the child's Indigenous identity, culture, heritage, spirituality, language and traditions

to an annual maximum determined by a director;

- (d) the cost or partial cost, to a maximum determined by a director, for the provision of orthodontic treatment for the child recommended by a dentist as medically necessary, to the extent that payment for the treatment is not available from another program or source and the financial assistance is the supports for permanency recipient's last resort;
- (e) if the child has behavioural or emotional problems,
 - (i) the cost of up to 10 one-hour counselling sessions annually at an hourly rate determined by a director,
 - (ii) the cost of treatment of the child in a residential facility satisfactory to a director, to an annual maximum determined by the director, if the director is of the opinion that the placement of the child is likely to break down without the treatment,
 - (iii) up to \$70 weekly, as determined by a director, to purchase any additional services required to address the child's additional needs with respect to behavioural or emotional problems, and
 - (iv) the cost or partial cost, to a maximum determined by the director, of a medical or psychological assessment of the child that is necessary to establish eligibility for other programs or services, if the supports for permanency recipient is not eligible to receive payment for the assessment from another program or source and the financial assistance is the supports for permanency recipient's last resort.

(3) Financial assistance under section 105.795 of the Act may only be provided pursuant to an agreement entered into between the director and a supports for permanency recipient.

(4) Either party to an agreement referred to in subsection (3) may cancel the agreement on 30 days' written notice to the other party.

(5) An adult person who is caring for a child and who has applied to a court for guardianship of the child or to adopt the child must

- (a) provide a filed copy of the application and of any order made with respect to the application to a director, and

(b) meet any other requirements as specified by the director to be provided with financial assistance under section 105.795(2) of the Act.

(6) A director must review an agreement referred to in subsection (3)

- (a) at least every 6 months in a case in which financial assistance is being provided under section 105.795(2) of the Act and at least annually in every other case, and
- (b) within 30 days after receiving a written request for a review from the supports for permanency recipient.

(7) Without limiting the application of subsection (4), if, after a review under subsection (6) or after a director receives information about a change in circumstance, the director is of the opinion that

- (a) the needs of the child have changed, or
- (b) the financial ability of the supports for permanency recipient to maintain the child or to pay for the services required to meet the needs of the child has changed,

the director may, at the discretion of the director, immediately, or on 30 days' written notice to the supports for permanency recipient, vary or cancel the agreement.

AR 160/2004 s10;163/2006;277/2009;31/2019;167/2020;
194/2025

Income testing re basic maintenance rate

10.01(1) In this section and section 10.02, "basic maintenance rate" means the financial assistance referred to in section 10(2)(a).

(2) For the purposes of this section, a supports for permanency recipient's total combined income must be calculated as follows:

- (a) in the case of financial assistance provided in respect of a child under section 105.795(1) of the Act, the sum of the gross annual income of each person who is appointed or becomes a guardian of the child, or who adopts the child, as referred to in that section;
- (b) in the case of financial assistance provided in respect of a child under section 105.795(2) of the Act, the sum of the gross annual income of each adult person who has applied to a court for guardianship of, or to adopt, the child, as referred to in that section.

(3) For the purposes of subsection (2), the gross annual income of a person referred to in that subsection is the following:

- (a) if a Notice of Assessment is available for the preceding taxation year, the amount shown on line 15000 of the Notice of Assessment in respect of the income tax return filed by the person under the *Income Tax Act* (Canada) for the preceding taxation year;
- (b) if a Notice of Assessment is not available for the preceding taxation year, the amount a director determines for the person using the same income information that the person would have used to report total income on line 15000 of an income tax return for the preceding taxation year;
- (c) if a Notice of Assessment is available for the preceding taxation year but is not an accurate reflection of the person's current income, the amount a director determines for the person using the same income information that the person would use to report total income on line 15000 of an income tax return for the current taxation year.

(4) For greater certainty, the gross annual income of each person referred to in subsection (2)(a) or (b), as applicable, must be included in calculating a supports for permanency recipient's total combined income regardless of whether the person is or becomes a party to an agreement with a director referred to in section 10(3).

(5) Subject to subsection (6) and section 10.02, a director must not enter into an agreement to provide the basic maintenance rate to a supports for permanency recipient if the total combined income of the supports for permanency recipient is equal to or greater than \$180 000.

(6) If a director is satisfied that the total combined income of a supports for permanency recipient with whom, under subsection (5), the director was not permitted to enter into an agreement to provide the basic maintenance rate has become less than \$180 000, the director may, at the discretion of the director

- (a) enter into an agreement to provide the basic maintenance rate to the supports for permanency recipient, or
- (b) vary an agreement to provide the basic maintenance rate to the supports for permanency recipient.

(7) Subject to section 10.02, and without limiting the application of section 10(4) or (7), if the total combined income of a supports for permanency recipient receiving the basic maintenance rate becomes equal to or greater than \$180 000, a director may, on

30 days' written notice to the supports for permanency recipient, cancel or vary the agreement with the supports for permanency recipient to discontinue the basic maintenance rate.

Transitional — basic maintenance rate income testing

10.02(1) If a supports for permanency recipient received financial assistance in respect of a child under section 105.795 of the Act that included the basic maintenance rate prior to September 1, 2025, section 10.01(5) and (7) do not apply to any current or subsequent agreement between a director and a supports for permanency recipient in respect of the same child.

(2) Section 10.01(5) and (7) do not apply to an agreement between a director and a supports for permanency recipient who applied to a court for guardianship of a child, or to adopt a child, on or before February 28, 2025, provided that the financial assistance provided pursuant to the agreement is in respect of the child that was the subject of the guardianship or adoption application.

AR 194/2025 s4

10.1 Repealed AR 164/2025 s2.

Part 2 Repealed AR 194/2025 s5.

Part 3
Repeal, Expiry and Coming into
Force

Repeal

27 The *General Regulation* (AR 38/2002) and *Qualification Regulation* (AR 40/2002) are repealed.

28 Repealed AR 194/2025 s6.

Coming into force

29 This Regulation comes into force on November 1, 2004.

Schedule 1

Form 1 Repealed AR 167/2020 s7

Form 2 Repealed AR 167/2020 s7

Form 3
Permanent Guardianship Agreement

1 Regarding the (child's name) , born (date -yyyy/mm/dd) .

2 Introduction

The guardians of this child have asked the director to take guardianship of the child.

We understand that once we enter this agreement:

- anyone who is now a guardian of the child will no longer be a guardian;
- the director will become the child's only guardian;
- a guardian may end this agreement within 10 days after signing it. To end the agreement, the guardian must give the director a written request.

☐ I have received independent legal advice regarding this agreement.

☐ I have been advised of my right to seek independent legal advice regarding this agreement but have chosen not to.

3 Agreement

This agreement is made according to section 11 of the *Child, Youth and Family Enhancement Act*.

This agreement is between a director and (names) who are all of the guardians of the child.

We agree that the director will assume sole guardianship of the child.

4 Signatures

Note: all copies must have original signatures

<u> (Witness) </u>	<u> (date -yyyy/mm/dd) </u>	<u> (Guardian) </u>
<u> (Witness) </u>	<u> (date -yyyy/mm/dd) </u>	<u> (Guardian) </u>
<u> (Witness) </u>	<u> (date -yyyy/mm/dd) </u>	<u> (Director's delegate) </u>

Form 4 Repealed AR 167/2020 s7

Form 5 Repealed AR 277/2009 s7.

Form 6
Secure Services Certificate

1 Regarding the (child's name) , born (date -yyyy/mm/dd) .

2 Guardian's Consent

I (name) am a guardian of this child.

My child is a subject of a:

☐ supervision order.

☐ custody agreement between a director and me.

☐ family enhancement agreement between a director and me.

I consent to the issuing of a Secure Services Certificate for my child. I understand that for the duration of the Certificate, my child will be in the custody of a director and will be confined in a secure services facility.

 (Guardian's signature) (Guardian's signature (if applicable))

3 Certificate

This certificate is issued by a director under section 43.1 of the *Child, Youth and Family Enhancement Act*.

This certificate is the authority for confining this child in a secure services facility.

The director authorizes any person to confine the child in a secure services facility from (date -yyyy/mm/dd) to (date -yyyy/mm/dd) .

The secure services facility is (name) at (address) .

4 Affidavit

My name is (name of director's delegate) .

I have the authority to act for a director.

I have reasonable and probable grounds to believe that the child is in a condition presenting an immediate danger to the child or others, that it is necessary to confine the child in order to stabilize and assess the child and that less intrusive measures are not adequate to sufficiently reduce the danger because: _____

 (Signature of Director's Delegate)

SWORN BEFORE ME at the _____ of _____)
_____, in the Province of Alberta, the _____)
____ day of _____, _____)
_____) _____

 (witness signature)

(Commissioner for Oaths)
in and for the Province of Alberta)

Form 7 Repealed AR 167/2020 s7.

Form 8 Repealed AR 167/2020 s7.

Form 9 Repealed AR 31/2019 s6.

Form 10 Repealed AR 167/2020 s7.

Form 11 Repealed AR 167/2020 s7.

Form 12 Repealed AR 167/2020 s7.

Form 13 Repealed AR 167/2020 s7.

Form 14 Repealed AR 167/2020 s7.

Form 15 Repealed AR 167/2020 s7.

Form 16 Repealed AR 167/2020 s7.

Form 17 Repealed AR 167/2020 s7.

Form 18 Repealed AR 167/2020 s7.

Form 19 Repealed AR 167/2020 s7.

Form 20 Repealed AR 167/2020 s7.
AR 160/2004 Sched.1;277/2009;147/2014;31/2019;8/2020;167/2020

Schedule 2

The following are secure services facilities:

- (a) Youth Assessment Centre (High Prairie);
 - (b) Youth Assessment Centre (Lac La Biche);
 - (c) Youth Assessment Centre (Red Deer);
 - (d) Yellowhead Youth Centre (Edmonton);
 - (e) Hull Services (Calgary);
 - (f) Sifton Family and Youth Services (Lethbridge).
- AR 160/2004 Sched.2;218/2004;194/2012



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